

surprise, or neglect, vacate any...resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment."

At bar, Cross-Defendant's counsel attests that his mistake and inadvertence resulted in the default entered on December 26, 2026. The request to set aside default was timely filed on February 24, 2026 and is unopposed. Indeed, Cross-Complainant has offered to stipulate to the relief requested.

Relief is warranted and the December 26, 2026, default in connection with the original complaint is vacated.

While this motion was pending, a First Amended Cross-Complaint was filed on May 4, 2026. Cross-Defendant Bank of America shall file a response to the same within 30 days of this Order.

4. CU0002612 LGC Sierra Pines MHC LLC vs. Sierra Pines Mobile Home Park

Prospective Intervenor SP MHC LP, LP and SP MHC GP, LLC's (collectively "SP Partners") unopposed February 24, 2026, motion to intervene is granted. SP Partners are granted leave to file the complaint in intervention attached to the moving papers within 10 days of this Order.

Legal Standard

"An intervention takes place when a nonparty, deemed an intervenor, becomes a party to an action or proceeding between other persons" and joins a plaintiff in seeking relief, unites with a defendant in resisting the claims of a plaintiff, or demands relief adverse to both a plaintiff and a defendant. Code Civ. Proc. § 387(b). "The purpose of allowing intervention is to promote fairness by involving all parties potentially affected by a judgment." *Lindelli v. Town of San Anselmo* (2006) 139 Cal.App.4th 1499, 1504.

Code of Civil Procedure § 387(d) provides as follows:

- (1) The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied:
 - (A) A provision of law confers an unconditional right to intervene.
 - (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless the person's interest is adequately represented by one or more of the existing parties.
- (2) The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.

Code of Civil Procedure section 387(c) provides that a nonparty "shall petition the court for leave to intervene by noticed motion or by ex parte application. The petition shall include a copy

of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests.”

The applicable standard for mandatory intervention is set forth in *Crestwood Behavioral Health, Inc. v. Lacy* (2021) 70 Cal.App.5th 560:

Mandatory intervention is governed by Code of Civil Procedure section 387, subdivision (d)(1)—which “should be liberally construed in favor of intervention.” *Simpson Redwood Co. v. State of California* (1987) 196 Cal.App.3d 1192, 1200. Under that section, “a party's proposed intervention must be timely.” *Lofton v. Wells Fargo Home Mortgage* (2018) 27 Cal.App.5th 1001, 1012, 238 Cal.Rptr.3d 626 (Lofton). If timely, then the proposed intervenor, to establish mandatory intervention under subdivision (d)(1)(B), must show (1) “ ‘an interest relating to the property or transaction which is the subject of the action’ ” *Siena Court Homeowners Assn. v. Green Valley Corp.* (2008) 164 Cal.App.4th 1416, 1423, 79 Cal.Rptr.3d 915 (Siena Court); italics omitted; (2) “he or she ‘is so situated that the disposition of the action may as a practical matter impair or impede’ ” his or her “ ‘ability to protect that interest’ ” *id.* at p. 1424, 79 Cal.Rptr.3d 915; and (3) he or she is not “ ‘adequately represented by the existing parties’ ” *ibid.*

Id. at 572-73 (parentheses omitted).

At bar, the SP Partners are entitled to intervene as a matter of right under Code of Civil Procedure section 387(d)(1)(B). SP Partners have a concrete interest in the property and transaction at issue, *i.e.*, the sale of the mobile home park property; deciding this action without SP Partners’ participation would impair their ability to protect their interest in recovering on their investment; the existing parties will not adequately represent that interest; and SP Partners’ February 24, 2026, motion is timely in connection with the February 2, 2026, Complaint. Further, the motion is unopposed.

SP Partners’ motion is granted.

5. CU21-086089 George L Horner, et al vs. Deborah Carver

Defendant Deborah J. Carver (“Carver”)’s requests to strike/disregard the Referee’s report/photographs and to compel inspection by a licensed inspector are denied.

Under Code of Civil Procedure section 873.060, Referee Brzezinski is authorized to “perform any acts necessary to exercise the authority conferred by the order of the court” to sell the property. No good cause has been stated to disregard the Referee’s report. From the reports of the Referee and the parties it is clear that the subject property needs further inspection and likely requires additional work before it can be marketed for sale. Within 60 days of this order, the Referee shall retain any professionals deemed necessary to perform inspections and provide estimates for repairs reasonably necessary to prepare the property for market. The Referee shall continue to be mindful of and considerate to all household occupants, including Carver’s mother. Any cost or expense associated with such retention (for recommendations and estimates only) shall be shared by the parties according to their respective ownership interests, to be reimbursed from the proceeds of the sale.